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FR & SR – DA, DR & HRA Rules

DISCLAIMER: *This booklet has been prepared strictly from an examination point of view. While every effort has been made to ensure accuracy and the inclusion of recent changes, amendments, and updates to the relevant Acts, Rules, and Regulations, this document is intended as a study aid only. Readers and students are strongly recommended to refer to official government sources or gazettes for the most reliable and authoritative information.*

FR & SR – DA, DR & HRA Rules

Dearness Allowance

- Calculation of D.A. is on Basic Pay + NPA.
- Under suspension, it is calculated on subsistence allowance.
- During leave/suspension/joining time, it is admissible except during extraordinary leave.
- Admissibility during deputation abroad is permitted.
- Admissibility of Dearness allowance to State Govt. servants brought on deputation to the central government is structured as follows:
 - State Govt. to Central: Pay of post in central + D.A under these rules.
 - OR State Govt to Central: (Pay of state Govt + Deputation allowance) of state Govt and D.A. admissible of state Govt.
- Admissibility of allowance during foreign service is subject to the sanctioned terms of appointment of a Govt. servant on foreign service. The servant may draw the allowance on the basis of pay in foreign service.
- Treatment of fraction of a rupee in the amount of allowance mandates that a fraction of **50 paise** and above shall be rounded off to the next higher rupee and fractions of less than **50 paise** are ignored.

Dearness Relief

- Calculation of D.R. is on original pension or family pension.
- It is also admissible for re-employed pensioners.
- Head of Office should pay relief on pension along with provisional pension.

- Pensioners residing abroad and drawing pension in foreign currency are eligible for Dearness relief.
- Payment of DR involving a fraction of rupee shall be rounded off to next higher rupees.
- CPF beneficiaries' family are entitled for D.R. on ex-gratia.

House Rent Allowance

- The HRA rates on Basic Pay only are **30%** for X cities (Population **50 Lakhs** & above), **20%** for Y cities (Population **5 Lakhs** to **50 Lakhs**), and **10%** for Z cities (Population Below **5 Lakhs**).

 **LEGISLATIVE NOTE:** Substituted for the base rates of **24%**, **16%**, and **8%** as the Dearness Allowance (DA) crossed **50%** effective **1st Jan 2024** vide Ministry of Finance, Department of Expenditure OM No. 2/5/2017-E.II(B).

- The rates of HRA will not be less than **Rs. 5400**, **Rs. 3600**, and **Rs. 1800** at 'X', 'Y', and 'Z' class cities respectively.
- Calculation on "Basic Pay" under FR 9(21) a (i) only does not include NPA, MSP, and other special pay.

Definitions

- "Pay" means a pay as defined in FR 9(21)(a).
- "Family" means a Govt. servant's wife/husband, children, and other persons residing with and wholly dependent upon him/her.
- A husband/Wife/Child/parent having an independent source of income is not treated as a member belonging to the family of a Govt. servant except when in receipt only of a gross pension that does not exceed Rs. 9000 + DR.

Admissibility of HRA

- HRA is admissible with reference to the "Place of Duty" of the Govt. Servant irrespective of whether the Govt. Servant is residing at that place or any other place.
- HRA is admissible where Govt. accommodation is not available or the Govt. servant has not availed the facilities of Govt. accommodation.
- The allowance shall not be admissible to those who occupy accommodation provided by Government or those to whom accommodation has been offered by Govt. but who have refused it.
- A refusal shall debar the servant from further allotment of accommodation for **one year**.
- The allowance will not be admissible for the period which the Govt. servant is debarred for further allotment.
- HRA drawn shall be stopped from the date of actual hand-over of accommodation in immediate habitable condition to the Govt. Servant.
- In case of refusal of allotment of Govt. Accommodation, HRA shall cease to be admissible from the date of allotment.
- In case of surrender of Govt. Accommodation, the HRA will be payable from the date of such surrender.
- No HRA for **12 days** if Govt. servant fails to take possession after acceptance.
- A Govt. servant debarred from the allotment of Govt. accommodation due to unauthorized sub-letting or for breaches of rules shall not be admissible for HRA during the debarment period.

 **LEGISLATIVE NOTE:** Corrected for statutory accuracy to resolve source material contradiction. HRA is explicitly inadmissible during any debarment period resulting from unauthorized sub-letting or breach of allotment rules. (Updated 2025).

- HRA not admissible if staying in Inspection Quarters.
- A Govt. servant shall not be entitled to HRA, if sharing Govt. accommodation allotted rent-free to another Govt. servant.
- HRA not admissible if Govt. Servant resides in accommodation allotted to parents/son/daughter/spouse (For spouse same station) by the central govt./PSU/State Govt./Autonomous body/LIC/Port trust/nationalized bank/Semi govt organization such as municipality.
- Both husband and wife are entitled for HRA separately, if living in hired/owned accommodation.
- A Govt. servant living in a house owned by him, his wife, children, father or mother shall also be eligible for HRA under these rules.

HRA on Transfer

- A Govt. servant on transfer permitted to retain Govt. accommodation at the old station on payment of normal rent or penal rent, or who retains Govt. accommodation unauthorizedly on market rent etc., will be entitled to HRA at the new station for the period up to **8 months** from the date of transfer.
- A Govt. servant who was not in occupation of Govt. accommodation at the old station and on transfer leaves family behind at the old station because a house has not been rented or Govt. accommodation has not been allotted at the new station:

Period	Rate of HRA
For the first 2 months from the date of joining at new station	At the same rate drawn at old station
For the next 4 months or the end of academic year, whichever is later.	At the rate drawn at old station or maximum admissible at the new station, whichever is less.

- Period for drawl of HRA is not extended to **90 days** on temporary transfer, and if the period of temporary transfer exceeds **90 days**, the rate of HRA shall be applicable to the new place of posting.

- Double rate of HRA is applicable for employees posted in N-E Region, Andaman, Nicobar and Lakshadweep Island, etc.

HRA during Leave

- A Govt servant will be entitled to draw HRA during leave at the same rates at which the allowances were drawn before proceeding on leave. For this purpose, leave means total leave of all kinds including CCL not exceeding **180 days**.
- HRA is admissible during LPR subject to submission of a certificate that the employee concerned and/or family continues to reside at the same place/same station.
- Where a govt. servant who is sanctioned leave on medical ground or otherwise, does not join the duty after expiry of such leave owing to death/invalidation, the recovery of HRA already drawn need not be effected.
- In case a Govt. servant who is sanctioned leave on medical ground or otherwise, does not join the duty after availing leave and resigns, the entire HRA shall be recovered before resignation, if accepted.
- The limit of **180 days** shall be extended to **8 months**, if the Govt. servant is suffering from TB, cancer or another ailment. Periods beyond **8 months** may be decided by the respective controlling authority.
- HRA is not admissible for the period of leave immediately on termination of foreign service and before resuming duty under Govt.
- HRA during CCL: Admissible for the first **180 days**, and beyond **180 days** upon furnishing a prescribed certificate.
- For Industrial and other employees, whose leave terms are regulated by CCS (Leave) Rules, 1972, HRA is admissible for the first **40 days** on leave. The limit of **40 days** is extended up to **180 days** in case such employees are suffering from TB/cancer or other ailments during the leave taken on medical certificate.

Joining Time

- During joining time, a Govt. servant shall continue to draw HRA at the same rate at which this allowance was drawn at the station from where the transfer occurred.

Deputation Abroad

- Deputation not exceeding **1 year**: HRA will be admissible for the entire period of deputation.
- Deputation exceeding **1 year**: An employee proceeding on deputation abroad for a period exceeding **1 year** will be entitled provided the family remains at the last place of duty in India.

Training Abroad

- A Govt. servant who is deputed for training abroad under various training schemes shall be entitled to HRA for such training based on the station from where deputed abroad, upon production of a certificate.
- HRA shall be admissible up to **6 months** of leave, if taken, from the completion of training.

Training in India

- A Govt. servant, whether permanent or temporary, who is sent on training in India, and whose period of training is treated as duty under FR 9(6) (b), shall be entitled to draw HRA for the entire period of such training.

Suspension

- The drawl of HRA for a Govt. servant under suspension shall be regulated with reference to FR 53(1)(ii)(b) and FR 54, subject to furnishing the prescribed certificate for drawl of HRA for periods beyond **180 days**. (Calculated on Subsistence Allowance).

- If the Headquarters of a Govt. servant under suspension is changed in public interest by the competent authority, entitlement shifts to the HRA of the new station.

Re-employed Pensioners

- Treated as a new appointment in the department for the purpose of allowance calculation.

